Planning Department
Township of Livingston

Livingston Town Hall
357 S. Livingston Avenue
Livingston, NJ 07039

Phone: 973-992-5000 #5511
Fax: 973-535-7989
planning@livingstonnj.org

ZONING BOARD OF ADJUSTMENT
CONFERENCE, RE-ORGANIZATION & REGULAR MEETINGS

February 26, 2026 – 7:00 PM

Updated 2/26/2026

This agenda is for information only and may change prior to the actual meeting.

Conference / Re-Organization Meeting Agenda:

1. Call to Order
2. Statement of Compliance with Open Public Meetings Act
3. Roll Call
4. Approval of Minutes – January 27, 2026
5. Communications
6. Old Business – (a) Administration of Oath: Mihir Shah, Member, with a term expiring on December 31, 2029.

   (b) Consideration of Memorializing Resolutions:

   - 14 Hazelwood Avenue; Application No. 2025-68-V; Elaine & Scott Hamann
   - 77 North Livingston Avenue; Application No. 2025-72-V; Torialei & Latifa Fedai
   - 5 Avon Avenue; Application No. 2025-103-V; Garrett & Agata Duross
   - 13 Yorktown Terrace; Application No. 2025-90-V; Susanna Property LLC
   - 16 Cedar Parkway South; Application No. 2025-95-V; Verdant Place LLC
   - 6 Brayton Road; Application No. 2025-100-V; 6 Brayton Road, LLC
   - 75 W. Cedar Street; Application No. 2025-101-V; Square Group Realty, LLC
   - 23 Carlisle Drive; Application No. 2025-102-V; Rodak Homes, Inc.
   - 41 W. McClellan Avenue; Application No. 2025-107-V; 41 W. McClellan Avenue Inc.
   - 14 Burnet Hill Road; Application No. 2025-111-V; PNC Developers, LLC
   - 15 Highland Drive; Application No. 2025-112-V; Rodak Builders, LLC
   - 12 Locust Place; Application No. 2025-113-V; Rodak Builders, LLC
7. New Business
8. Adjournment

Regular Meeting Agenda

1. Call to Order
2. Statement of Compliance with Open Public Meetings Act
3. Roll Call

1) Variance (Adjourned to March 24, 2026)
Block 4803; Lot 19
40 Burnet Street
Application No. 2025-110-V
Felix Flores & Rachel Mundy R-4 Zone

Applicant seeks approval for an addition in violation of the following Sections:
- 170-99C2 Front Yard Setback – 40' required; 18.63' proposed **(existing)**; 21.37' variance requested.
- 170-87L(1)(d) – Front/Side (Corner) Yard Setback – 20' required; 14.61' proposed **(existing)**; 5.39' variance requested.
- 170-87E(1)(e) Accessory Garage Side Yard Setback – 5' required; 2.31' proposed **(existing)**; 2.69' variance requested.

2) Variance
Block 4403; Lot 17
11 Berkeley Place
Application No. 2025-105-V
Dmitry Khenkin R-4 Zone

Applicant seeks approval for an addition in violation of the following Section:
- 170-99C2 Front Yard Setback – 40' required; 39.6' proposed; 0.4' variance requested.
- 170-87CC4 Habitable Floor Area Ratio – 30% allowed; 34.9% proposed; 4.9% variance requested.

3) Variance
Block 6001; Lot 71
42 Walnut Street
Application No. 2025-108-V
Timothy Politowicz R-2 Zone

Applicant seeks approval for a rear extension to the rear of the house & replace existing front porch in violation of the following Section:
- 170-97C2 Front Yard Setback – 60' required; 20.3' proposed **(existing)**; 39.7' variance requested.
- 170-97C3 Right Side Yard Setback – 15' required; 7.7' proposed **(existing)**; 7.3' variance requested.
- 170-87E Accessory Building – 6' from any other accessory building or structure required; 0.7' proposed **(existing)**; 5.3' variance requested.

4) Variance
Block 5100; Lot 24
25 Wychwood Road
Application No. 2025-109-V
Marc Hirschberg R-3 Zone

Application seeks approval for a front, side, and rear addition in violation of the following Sections:

- 170-98C3 Aggregate Side Yard Setback – 33' required; 28.3' proposed; 4.7' variance requested.
- 170-87CC3 Habitable Floor Area Ratio – 21% allowed; 21.16% proposed; 0.16% variance requested.

5) Variance
Block 5100; Lot 52
23 North Drive
Application No. 2025-114-V
Yashasvi Arun & Swapna Bhatt R-3 Zone

Applicant seeks approval to construct a new single-family residence in violation of the following Sections:

- 170-87CC3 Habitable Area Floor Ratio – 21% allowed; 24.6% proposed; 3.6% variance requested.

6) Variance
Block 3301; Lot 6
12 Deal Lane
Application No. 2025-104-V
Samantha & Samuel Rubin R-3 Zone

Applicant seeks approval for a 2-story addition and 1-story attached garage in violation of the following Sections:

- 170-87BB3 Habitable Floor Area – 3520 sf allowed; 3900 sf proposed; 380 sf variance requested.
- 170-87BB3 Habitable Floor Area Ratio – 21% allowed; 23.6% proposed; 2.6% variance required.

7) Variance
Block 6900; Lot 26
184 E Northfield Road
Application No. 2026-12-V
Pedro Gomes R-3 Zone

Applicant seeks approval to construct a new single-family residence in violation of the following Sections:

- 170-98C2 Front Yard Setback – 50’ required not to exceed 60’; 121.8’ proposed; 61.8’’ variance requested.
- 170-98C1 Building Height – 35’ allowed; 38.5’ proposed; 3.35’ variance requested.
- 170-87BB3 Habitable Floor Area – 3520 sf allowed; 6700 sf proposed; 3180 sf variance requested.
- 170-87I(1) Garage – 3 Car Garage Allowed; 4 car garage proposed; 1 garage variance requested.
- 170-87E(1)(f)(3) Accessory Structure (Shed) – 500 sf allowed; 875 sf proposed; 375 sf variance requested.
- 170-96A(8)(f) – Swimming Pool Setback – 20’ required; 14.4’ proposed; 5.6’ variance requested.

9. Adjournment